



Submitted electronically via [REDACTED]

March 15, 2025

Re: Comments of Nielsen to Office of Science and Technology Policy Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

Dear Mr. D'Souza,

Nielsen welcomes the opportunity to comment on the development of an AI action plan by the Office of Science and Technology Policy at the White House.

Nielsen is a proud American company that is both a developer and deployer of artificial intelligence models and a global leader in independent audience measurement, data and analytics, shaping the future of media. Nielsen measures across all media channels and platforms to discover what audiences love. Furthermore, Nielsen's Gracenote is the industry's leading media and entertainment metadata provider. For over 40 years, Gracenote has created, collected, and organized detailed information about TV shows, sports, movies, and music. Gracenote creates, publishes, and licenses programming "metadata"—including detailed content attributes, associated talent, and information about television shows, movies, programming schedules, and related subjects. Gracenote provides its services to thousands of companies that serve millions of consumers and is a leader in AI development.

At Nielsen, we believe that for the U.S. to continue its AI dominance, the action plan should focus on the following:

Passage of Comprehensive Federal Privacy Legislation

The root of a prosperous U.S.-led AI ecosystem is passing comprehensive, preemptive federal privacy legislation. Data is the currency and foundation to advance trustworthy AI. A national privacy framework provides predictability in the marketplace, exponentially accelerating growth and U.S. dominance in AI. We recommend the Trump Administration prioritize its passage.

Prioritize Intellectual Property Protection, Data Accuracy, Transparency, and Cross-Industry Data Provenance Standards

Any AI model is only as good as the data it ingests. We must protect intellectual property and ensure that training data is high-quality, accurate, relevant, auditable, secure, and consistent to produce precise and robust outputs. This includes monitoring and curating empirical datasets ingested for deviations, drifts, anomalies, and bias. Creators, rightsholders, and businesses who produce or maintain data provide the crucial currency that feeds the development of these AI models. We should strive to harmonize and balance existing copyright laws for both the needs of AI developers to create their models and legally access data while putting in place safeguards to comply with relevant privacy or copyright legal frameworks. This approach protects American businesses from cheap knock-offs using American-grade innovation.

With the increasing pace of AI development, adoption, and transformation within industries, cross-industry data provenance standardization to evaluate the origin of data sources must be prioritized. The standards promote trust and transparency in the data collection by understanding where it came from, how it was created, and whether it may legally be used.¹ Sound data governance practices grounded in provenance and transparency will increase AI's value to businesses and greater adoption of AI. Transparency through data provenance will also allow businesses to make informed decisions about the validity of the data sources, speeding up innovation by increasing efficiency, accuracy, and quality assurance processes.²

Without robust data provenance, low-quality and biased data will run rampant, increasing business time and costs in cleaning up the data and slowing innovation and progress in this space. Thus, we recommend supporting efforts in cross-industry data provenance standardization and rejecting efforts that ignore data sourcing and intellectual property protections both for data rightsholder and the model developer. Data provenance will allow for explainability and transparency into data collection practices throughout the AI development cycle.

Adopt a Risk Based Approach to AI

Adopting an approach that focuses on high-risk applications based on the intended use cases and purposes will continue to enable innovation while mitigating risks. For example, AI use cases with a high risk of harming basic human rights and freedoms should face a higher degree of scrutiny, including impact assessments, bias testing, and thorough transparency and explainability measures. NIST has started the process in this space by producing a Risk Management Framework that serves as the industry's foundation for AI risk management. We recommend adopting NIST's flexible AI Risk Management Framework approach for evaluating and mitigating AI risk, which includes a focus on high-risk solutions and use-case profiles.

1. [Data & Trust Alliance, Data Provenance Standards Executive Overview](#)

2. Ibid.



Existing Sector-Specific Regulatory Authorities

The Government should not create a new tax-funded agency that may overlap in jurisdiction, stifling and slowing U.S. dominance and empowering competition to take the lead. Instead, the Government should allow for an agile, collaborative, and consistent approach to AI governance by leveraging and increasing support of its existing regulatory structures, as AI is already being deployed in numerous fields with the appropriate oversight. Agencies can address AI risks within their areas of expertise and statutory authority and resist the temptation to have one agency become an AI regulatory “one stop shop.” The government instead should focus on clearly defining the scope of authority to avoid regulatory overreach and redundancies.

Conclusion

We appreciate the opportunity to provide feedback to OSTP and applaud the Administration's interest in positioning the United States as the AI global leader. Nielsen stands ready and willing to work to provide our expertise in data integrity and insights as OSTP and the Administration work to finalize an AI Action Plan.

David W. Kenny
Executive Chairman
NIELSEN

NIELSEN
601 Pennsylvania Avenue NW
South Building Suite 900
Washington DC 20004
[REDACTED]

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